

Court No. - 39

Case :- WRIT - C No. - 42749 of 2018

Petitioner :- Farjand Ali

Respondent :- State Of U.P. And 6 Others

Counsel for Petitioner :- Siya Ram Verma

Counsel for Respondent :- C.S.C.,Pranjal Mehrotra,Suman Kumar Yadav

Hon'ble B. Amit Sthalekar,J.

Hon'ble Mrs. Manju Rani Chauhan,J.

Sri Pawan Kumar Mishra, learned counsel holding brief of Sri Pranjal Mehrotra files Vakalatnama of Sri Pranjal Mehrotra on behalf of respondents no.3 & 5. The same is taken on record.

Heard Sri S.R. Verma, learned counsel for the petitioner, Sri Pawan Kumar Mishra holding brief of Sri Pranjal Mehrotra, learned counsel for the respondents no.3 & 5 and the learned Standing Counsel for the respondents no.1, 6 & 7. Sri S.K. Yadav, learned counsel states that he has received notice on behalf of respondents no.2,3, 4 & 5.

The petitioner in the writ petition is seeking quashing of the recovery notice dated 17.09.2018 whereby a sum of Rs.18,02,329/- is sought to be recovered from the petitioner.

According to the petitioner he had earlier filed Writ Petition No.10330 of 2017 (Farjand Ali Vs. State of U.P. and Others) which was disposed of by the High Court vide order dated 07.03.2017 granting liberty to the petitioner to seek his remedy under Clause 6.5 of the Electricity Supply Code, 2005 and a direction was given to the Executive Engineer to consider the case of the petitioner.

According to the petitioner he has submitted an application before the Executive Engineer on 12.04.2017, copy of which has been filed as Annexure-7 to the writ petition but there is no receiving of any Authority. In paragraph 21 of the writ petition it is stated that no receiving was given by the Authority.

In our opinion, even if no receiving was given, it was the duty of the petitioner to have sent his application by registered post.

We, however, dispose of this writ petition with a direction that the petitioner shall appear before the respondent no.3, Executive Engineer, Kanpur Electricity Supply Company (KESCO) Urban Distribution Division, Kanpur Nagar on

11.01.2019 at 11 A.M. alongwith the certified copy of this order as well as his representation against the demand notice dated 17.09.2018. In case the petitioner appears and files such an application before the respondent no.3, Executive Engineer, the same shall be considered and decided by the respondent no.3 in accordance with law within a further period of 15 days.

Order Date :- 4.1.2019

N Tiwari